

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Lodewick	Team: Squad #15	CCRB Case #: 202404237	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/30/2024 4:40 PM, Tuesday, 04/30/2024 5:05 PM	Location of Incident: Intersection of Stanton Street and Ludlow Street, and the 7th Precinct stationhouse.	18 Mo. SOL 10/30/2025	Precinct: 07		
Date/Time CV Reported Tue, 04/30/2024 5:19 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 04/30/2024 5:19 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Christopher Satriano	02529	972946	007 PCT
2. PO Sean Smith	30904	973782	007 PCT
3. PO Maritsa Vasquez	05501	973012	007 PCT
4. Officer s			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Andy Wu	27147	967398	007 PCT
2. SGT SA Kenneth Jefferson	04968	944678	007 PCT
3. PO Corey Swanberg	24329	972480	007 PCT
4. PO Anthony Chicchetti	04987	972573	007 PCT
5. Marc Soto		964785	

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Christopher Satriano	Abuse: Police Officer Christopher Satriano threatened to issue summons to § 87(2)(b)	A . Unable to Determine
B . Officer s	Abuse: Officers threatened to issue summons to § 87(2)(b)	B . Officer(s) Unidentified
C . PO Sean Smith	Abuse: Police Officer Sean Smith failed to provide § 87(2)(b) with a business card.	C . Unable to Determine
D . PO Maritsa Vasquez	Abuse: Police Officer Maritsa Vasquez did not process § 87(2)(b) complaint regarding officers.	D . Unable to Determine
E . PO Christopher Satriano	Abuse: Police Officer Christopher Satriano threatened to issue summons to § 87(2)(b)	E . Substantiated
F . PO Christopher Satriano	Abuse: Police Officer Christopher Satriano improperly used his body-worn camera.	F . Unfounded

Case Summary

On April 30, 2024, § 87(2)(b) filed this complaint via the CCRB website.

On April 30, 2024, at approximately 4:40 PM, § 87(2)(b) was driving on Ludlow Street in Manhattan when two police vehicles blocked his path near the intersection with Stanton Street. Multiple officers, including Police Officer Christopher Satriano, Police Officer Sean Smith, Police Officer Andy Wu, Police Officer Corey Swanberg, Police Officer Anthony Chicchetti, Police Officer Mark Soto, and Sergeant Kenneth Jefferson, all of the 7th Precinct, had responded to the scene to investigate a vehicle that had been reported stolen. When § 87(2)(b) approached the officers to ask if they could move their vehicles so he could continue down the street, PO Satriano threatened to issue § 87(2)(b) a summons (**Allegation A: Abuse of Authority, Unable to Determine**). Two additional officers the investigation could not identify also allegedly threatened to issue § 87(2)(b) summonses (**Allegation B: Abuse of Authority, Officer(s) Unidentified**). Before the officers left the scene, § 87(2)(b) asked PO Smith for a business card. PO Smith allegedly did not provide § 87(2)(b) with a business card (**Allegation C: Abuse of Authority, Unable to Determine**).

On April 30, 2024, at approximately 5:05 PM, § 87(2)(b) drove to the 7th Precinct stationhouse in Manhattan, where he told Police Officer Maritsa Vasquez of the 7th Precinct that he wished to file a civilian complaint against officers. PO Vasquez allegedly did not help § 87(2)(b) file a civilian complaint against officers (**Allegation D, Abuse of Authority: Unable to Determine**). § 87(2)(b) then followed PO Satriano out of the 7th Precinct stationhouse to his police vehicle to accept a business card from him. After giving § 87(2)(b) a business card, PO Satriano threatened to issue § 87(2)(b) a summons for standing in the street (**Allegation E: Abuse of Authority, Substantiated**). While speaking with § 87(2)(b) PO Satriano allegedly deactivated his body-worn camera (**Allegation F: Abuse of Authority, Unfounded**).

§ 87(2)(b) was not arrested or issued any summons as a result of this incident.

The investigation obtained body-worn camera (BWC) footage relevant to this incident. The footage is linked in IAs #62 and #63 and summarized in IA #66 (**Board Review 14, 15, 16**). The investigation further obtained surveillance footage from the 7th Precinct stationhouse. The footage is linked in IA #40 and summarized in IA #45 (**Board Review 12, 13**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Satriano threatened to issue summons to § 87(2)(b)

Allegation (B) Abuse of Authority: Officers threatened to issue summons to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Sean Smith failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) provided a statement to the CCRB on May 3, 2024 (**Board Review 01**). During his interview, § 87(2)(b) stated that on April 30, 2024, at approximately 4:40 PM, he was driving on Ludlow Street in Manhattan when a police vehicle pulled in front of him and blocked his path before he reached the intersection with Stanton Street. Another police vehicle parked behind § 87(2)(b) preventing him from reversing down the street. Multiple officers had gathered around an unknown male civilian. § 87(2)(b) asked PO Satriano if he could move his and his partner's vehicle so he could continue down the street. PO Satriano responded to § 87(2)(b) "Get back in your car or I'm going to give you a summons." § 87(2)(b) then asked: Is this a lawful order?" PO

Satriano replied: “Yes this is a lawful order and I’m going to give you a lawful summons, now get back in your car.” Two other police officers whom § 87(2)(b) could not describe also threatened to issue § 87(2)(b) summonses for the same reason. § 87(2)(b) returned to his vehicle. Later, § 87(2)(b) asked PO Smith for his business card as he and PO Satriano prepared to leave the scene. PO Smith did not provide § 87(2)(b) with a business card before leaving the scene.

PO Satriano provided a statement to the CCRB on December 4, 2024 (**Board Review 02**). During his CCRB interview, PO Satriano stated that on April 30, 2024, he and his partner, PO Swanberg, responded to the vicinity of Ludlow and Stanton Streets in Manhattan after PO Smith and PO Chicchetti requested backup regarding a vehicle they were investigating that had been reported stolen. While PO Satriano and the other officers on the scene investigated the vehicle in question, § 87(2)(b) exited his own vehicle and approached them. PO Satriano and other officers told § 87(2)(b) to get on the sidewalk or get back in his car at least three times. § 87(2)(b) did not obey the officers’ instructions. PO Satriano then threatened to issue § 87(2)(b) a summons if he did not get out of the street and onto the sidewalk. PO Satriano could have issued § 87(2)(b) a summons for standing in the street and for obstructing governmental administration (OGA) while he and the other officers enacted an arrest. No officer besides PO Satriano threatened to issue § 87(2)(b) a summons. PO Satriano did not know if § 87(2)(b) asked PO Smith for a business card on the scene.

PO Smith provided a statement to the CCRB on December 10, 2024 (**Board Review 03**). During his CCRB interview, PO Smith stated that while he and other officers investigated the vehicle that had been reported stolen, § 87(2)(b) approached them and began to speak to them. PO Smith did not remember what § 87(2)(b) said to the officers specifically. PO Smith did not threaten to issue a summons to § 87(2)(b) on the scene and did not remember any officer, including PO Satriano, threatening to issue § 87(2)(b) a summons on the scene. After arresting the driver of the stolen vehicle, PO Smith offered § 87(2)(b) a business card. PO Smith offered § 87(2)(b) a business card because he “probably” asked for one. § 87(2)(b) declined to accept PO Smith’s business card.

PO Swanberg provided a statement to the CCRB on January 2, 2025 (**Board Review 04**). PO Chicchetti, PO Wu, and Sgt. Jefferson all provided statements to the CCRB on January 16, 2025 (**Board Review 05, 06, 07**). PO Soto has since retired from the NYPD and the CCRB was unable to obtain a statement from him as a result (**Board Review 08**). PO Swanberg, PO Chicchetti, PO Wu, and Sgt. Jefferson all denied threatening to issue a summons to § 87(2)(b) at any point over the course of this incident.

The investigation was unable to obtain BWC footage related to this incident as the footage was related to the sealed arrest of § 87(2)(b) (**Board Review 09**). The investigation was unable to reach § 87(2)(b) to obtain an unsealing waiver for the materials relating to his arrest.

NY CLS Penal § 195.05 establishes that a person is guilty of OGA when they intentionally obstruct, impair or pervert the administration of law or other governmental function or prevent or attempt to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act (**Board Review 10**).

§ 87(2)(g)

§ 87(2)(g)

is recommended that **Allegation A** be closed as **Unable to Determine**.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **Officer(s) Unidentified**.

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **Unable to Determine**.

Allegation (D) Abuse of Authority: Police Officer Maritsa Vasquez did not process § 87(2)(b) complaint regarding officers.

During his CCRB interview, § 87(2)(b) stated that on April 30, 2024, at approximately 5:05 PM, he drove to the 7th Precinct stationhouse, where he told desk officer PO Vasquez that he wished to file a complaint regarding the incident at Ludlow Street and Stanton Street (**Board Review 01**). PO Vasquez told § 87(2)(b) that he could not file a complaint at the stationhouse and that he would need to do so online.

PO Vasquez provided a statement to the CCRB on December 18, 2024 (**Board Review 11**). During her CCRB interview, PO Vasquez stated that on April 30, 2024, she spoke with § 87(2)(b) at the 7th Precinct stationhouse. § 87(2)(b) told her that he wished to speak with PO Smith and PO Satriano regarding an incident that had taken place earlier in the day. § 87(2)(b) did not ask her to file a civilian complaint against officers. PO Vasquez notified PO Satriano and PO Smith that § 87(2)(b) wished to speak with them.

The investigation obtained surveillance footage from the 7th Precinct stationhouse from April 30, 2024 (**Board Review 12, 13**). The footage does not contain audio and does not capture § 87(2)(b) speaking with PO Vasquez. The footage is therefore not relevant to this investigation.

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **Unable to Determine**.

Allegation (E) Abuse of Authority: Police Officer Christopher Satriano threatened to issue summons to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Christopher Satriano improperly used his body-worn camera.

During his CCRB interview, § 87(2)(b) stated that while at the 7th Precinct stationhouse, he asked PO Satriano for a business card (**Board Review 01**). PO Satriano told § 87(2)(b) to follow him outside to obtain his business card from his police vehicle. § 87(2)(b) followed PO Satriano to his police vehicle. § 87(2)(b) told PO Satriano that he had acted in an unprofessional manner earlier in the day. After providing § 87(2)(b) with his business card, PO Satriano said to him: “You’re standing in the street, how about I give you a ticket?” PO Satriano then pressed a button on his BWC, which § 87(2)(b) believed meant PO Satriano had deactivated it. § 87(2)(b) asked PO Satriano why he turned his BWC off. PO Satriano repeated that he would issue § 87(2)(b) a summons for standing in the street. PO Satriano then pressed a button on his BWC again.

During his CCRB interview, PO Satriano stated that after providing § 87(2)(b) with his business card outside of the 7th Precinct stationhouse, he told § 87(2)(b) to have a nice day and then deactivated his BWC because he thought their encounter had finished (**Board Review 02**). § 87(2)(b) continued to speak to PO Satriano, prompting him to activate his BWC again. § 87(2)(b) stood in the street outside of the stationhouse as he continued to speak with PO Satriano. PO Satriano told § 87(2)(b) to get on the sidewalk. § 87(2)(b) did not get on the sidewalk. PO Satriano then told § 87(2)(b) “I don’t want to give you a summons.” PO Satriano could have issued § 87(2)(b) a summons for standing in the street. § 87(2)(b) then left the scene, and PO Satriano deactivated his BWC again.

The CCRB obtained BWC footage from PO Satriano that is relevant to this portion of the incident (**Board Review 14, 15, 16**). At the 1m15s timestamp of the first piece of footage, PO Satriano walks to his police vehicle with § 87(2)(b) and fills out a blank business card with his contact information. At the 1m58s timestamp, PO Satriano hands § 87(2)(b) his business card and says: “You’re welcome for the break on the summons for being in the street.” At the 2m05s timestamp, PO Satriano says: “I used my discretion to not write you a criminal summons.” PO Satriano then says: “Have a good day,” as § 87(2)(b) appears to walk away. PO Satriano deactivates his BWC. The footage ends at 16:58:44 timestamp. The second piece of footage begins just one second later at the 16:58:45 timestamp. Audio begins three seconds later. When the audio begins, § 87(2)(b) is standing next to the sidewalk in an area of the street marked off with paint to denote that it is an area where parking is not allowed. At the 0m6s timestamp, PO Satriano tells § 87(2)(b) “You want to get on the sidewalk? Or did we not learn our lesson about the warning I gave you about being on the sidewalk.” At the 0m20s timestamp PO Satriano tells § 87(2)(b) “I don’t want to write you a summons.” § 87(2)(b) then steps onto the sidewalk.

NY CLS Veh & Tr § 1156 establishes that it is unlawful for pedestrians to walk upon a roadway when “sidewalks are provided” (**Board Review 17**).

While § 87(2)(b) and PO Satriano’s respective statements differ regarding the exact phrasing of their conversation, they are consistent regarding PO Satriano threatening to issue § 87(2)(b) a summons if he did not move onto the sidewalk. § 87(2)(g)

PO Satriano’s BCW footage clearly shows that § 87(2)(b) is not standing in the roadway when PO Satriano threatens to summons him, and is instead standing out of the way of traffic in an area of the street

marked off with paint to denote that it is an area where parking is not allowed. § 87(2)(g) it is recommended that **Allegation E** be closed as **Substantiated**.

While it is undisputed that PO Satriano briefly deactivated his BWC footage during this portion of the incident, the footage clearly shows § 87(2)(b) walking away from PO Satriano after receiving a business card. § 87(2)(g) PO Satriano then immediately activated his BWC again at § 87(2)(b) request, evidenced by the final timestamp of his first piece of footage and the initial timestamp of his second piece of footage being separated by only one second, § 87(2)(g) it is recommended that **Allegation F** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 18**).
- PO Satriano has been a member of service for three years and has been a subject in three additional CCRB complaints, of which one is still under investigation, and six allegations, none of which have been substantiated (**Board Review 19**). § 87(2)(g)
- PO Smith has been a member of service for three years and this is the first CCRB complaint to which he has been a subject (**Board Review 20**).
- PO Vasquez has been a member of service for three years and has been a subject in one additional CCRB complaint and one allegation, which was mediated (**Board Review 21**). § 87(2)(g)

Mediation and Civil Histories

- This complaint was not suitable for mediation.
- As of December 17, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 22**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	Colin Lodewick	Inv. Colin Lodewick	February 6, 2025
	Signature	Print Title & Name	Date

Squad Leader:	Simon Wang	IM Simon Wang	02/06/25
	Signature	Print Title & Name	Date

Reviewer:			
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Signature

Print Title & Name

Date